

CORY LEA SHEPHERD

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Dr Peter Hawes
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September 2026

Dear Dr Hawes,

Queensland Industrial Relations Commission – WC/2024/227 – my workers' compensation appeal

You may recall that you saw me on 1 July 2024 and issued the work capacity certificate for my workers' compensation claim, and that you issued further certificates on 11 August and 8 September 2024. WorkCover rejected the claim and I have appealed to the Queensland Industrial Relations Commission. The appeal is a fresh hearing.

On 9 September 2026 I filed with the Commission a list of the witnesses I may call at the hearing. You are named on that list as my treating general practitioner at the date of injury, together with my treating psychiatrist Dr Ravikumar Bangalore Krishnaiah.

The appeal is a hearing before the Queensland Industrial Relations Commission. Under the Commission's Workers' Compensation Appeal Guide, all evidence is given orally and there are no witness statements or affidavits. The Guide also states that "presenting a medical report on its own cannot be considered without having the expert witness give evidence orally to support that document and being available for cross-examination by the other party".

I am not asking you to prepare a report, to review any material, or to express any opinion in advance. I am asking only whether you are able to attend to give evidence about your own treatment of me and your own records.

Two practical matters. The Commission allows expert witnesses to give evidence by telephone or video rather than in person. And the Commission can issue an attendance notice requiring attendance on a fixed date and time, which some practitioners prefer because it fixes the commitment and formalises the request; conduct money is payable to expert witnesses at the applicable rate, and I will pay it.

What that would involve is your evidence of your own treatment: the consultation of 1 July 2024 and what you recorded; the work capacity certificates you issued and their contents; the referral to a psychiatrist recorded on the certificate of 8 September 2024; and the conversation with WorkCover recorded as having taken place on 2 September 2024. You would then be asked questions by the Respondent's representative.

Could you please let me know by **Friday 2 October 2026** whether you are willing to attend, and if so whether you would prefer to be given an attendance notice. If it is easier, your practice manager can reply on your behalf.

I am grateful for your time.

Yours sincerely,

Cory Lea Shepherd